



CERTIFICATE

This Insurance is effected with Orion Insurance Intermediaries, LLC.

This Certificate is issued in accordance with the limited authorization granted to Orion Insurance Intermediaries, LLC. by Palomar Excess & Surplus Insurance Company (herein called "Insurer") and the proportions underwritten are noted below. In consideration of the premium specified herein, Insurer hereby bind themselves severally and not jointly, each for its own part and not one for another.

The Insured is requested to read this Certificate, and if it is not correct, return it immediately to the Correspondent for appropriate alteration.

All inquiries regarding this Certificate should be addressed to the following

Correspondent:

Orion Insurance Intermediaries, LLC.

1298 Prospect St Ste 1U

La Jolla, CA 92037

1. **Signature Required.** This Certificate shall not be valid unless signed by the Correspondent on the attached Declaration Page.
2. **Correspondent Not Insurer.** The Correspondent is not an Insurer hereunder and neither is nor shall be liable for any loss or claim whatsoever. The Insurer hereunder is Palomar Excess & Surplus Insurance Company.
3. **Cancellation.** If this Certificate provides for cancellation and this Certificate is cancelled after the inception date, earned premium must be paid for the time the insurance has been in force.
4. **Service of Suit.** In the event of failure of Insurer to pay any amount claimed to be due by the terms of this policy, at your request, Insurer will submit to the jurisdiction of a court of competent jurisdiction within the United States and will comply with all requirements necessary to give such court jurisdiction. Nothing in this endorsement constitutes or should be understood to constitute a waiver of Insurer's rights to commence an action in any court of competent jurisdiction in the United States, to remove an action an action to a United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States, or of any state in the United States. It is further agreed that service of process in such suit may be made upon President, Orion Insurance Intermediaries, LLC, 1298 Prospect Street, #1U, La Jolla, CA 92037, and that in any suit instituted against Insurer by the terms of this policy we will abide by the final decision of such court or of any appellate court in the event of an appeal.

If any statute of any state, territory or district of the United States makes such provision, Insurer hereby designates the Superintendent, Commissioner or Director of Insurance, or other officer specified for that purpose in the statute, or his or her successors in office, as our true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by you or on your behalf, or your beneficiary, arising out of this insurance policy. Insurer designates the above individual as the person to whom said officer is authorized to mail such process or a true copy thereof.
5. **Assignment.** This Certificate shall not be assigned either in whole or in part without the written consent of the Correspondent endorsed hereon.
6. **Attached Conditions Incorporated.** This Certificate is made and accepted subject to all the provisions, conditions and warranties set forth herein, attached or endorsed, all of which are to be considered as incorporated herein.
7. **Short Rate Cancellation.** If the attached provisions provide for cancellation, the table below will be used to calculate the short rate proportion of the premium when applicable under the terms of cancellation.

Short Rate Cancellation Table for Term of One Year.

Days Insurance in Force	Per Cent of one year Premium	Days Insurance in Force	Per Cent of one year Premium	Days Insurance in Force	Per Cent of one year Premium	Days Insurance in Force	Per Cent of one year Premium
1	5%	66 - 69	29%	154 - 156	53%	256 - 260	77%
2	6%	70 - 73	30%	157 - 160	54%	261 - 264	78%
3 - 4	7%	74 - 76	31%	161 - 164	55%	265 - 269	79%
5 - 6	8%	77 - 80	32%	165 - 167	56%	270 - 273 (9 mos)	80%
7 - 8	9%	81 - 83	33%	168 - 171	57%	274 - 278	81%
9 - 10	10%	84 - 87	34%	172 - 175	58%	279 - 282	82%
11 - 12	11%	88 - 91 (3 mos)	35%	176 - 178	59%	283 - 287	83%
13 - 14	12%	92 - 94	36%	179 - 182 (6 mos)	60%	288 - 291	84%
15 - 16	13%	95 - 98	37%	183 - 187	61%	292 - 296	85%
17 - 18	14%	99 - 102	38%	188 - 191	62%	297 - 301	86%
19 - 20	15%	103 - 105	39%	192 - 196	63%	302 - 305 (10 mos)	87%
21 - 22	16%	106 - 109	40%	197 - 200	64%	306 - 310	88%
23 - 25	17%	110 - 113	41%	201 - 205	65%	311 - 314	89%
26 - 29	18%	114 - 116	42%	206 - 209	66%	315 - 319	90%
30 - 32 (1 mos)	19%	117 - 120	43%	210 - 214 (7 mos)	67%	320 - 323	91%
33 - 36	20%	121 - 124 (4 mos)	44%	215 - 218	68%	324 - 328	92%
37 - 40	21%	125 - 127	45%	219 - 223	69%	329 - 332	93%
41 - 43	22%	128 - 131	46%	224 - 228	70%	333 - 337 (11 mos)	94%
44 - 47	23%	132 - 135	47%	229 - 232	71%	338 - 342	95%
48 - 51	24%	136 - 138	48%	233 - 237	72%	343 - 346	96%
52 - 54	25%	139 - 142	49%	238 - 241	73%	347 - 351	97%
55 - 58	26%	143 - 146	50%	242 - 246 (8 mos)	74%	352 - 355	98%
59 - 62 (2 mos)	27%	147 - 149	51%	247 - 250	75%	356 - 360	99%
63 - 65	28%	150 - 153 (5 mos)	52%	251 - 255	76%	361 - 365 (12 mos)	100%



1298 Prospect St Ste 1U, La Jolla, CA 92037

NOTICE TO POLICYHOLDERS U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL (OFAC)

No coverage is provided by this Notice, nor can it be construed to replace any provisions of your policy (including its endorsements). If there is any conflict between this Notice and your policy (including its endorsements), the provisions of your policy (including its endorsements) shall prevail.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC and possibly by the U.S. Department of State. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces economic and trade sanctions policy based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers; as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's website – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, or any applicable regulation promulgated by the U.S. Department of State, if it is determined that you and any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

CUSTOMER NOTICE OF PRIVACY POLICY AND PRODUCER COMPENSATION PRACTICES DISCLOSURE

Privacy Policy Disclosure

Your privacy is important to us. We will keep the information you provide to us secure and handle it only as permitted by law. This notice tells you about our Privacy Policy and how we handle your information.

"Personal information" is information that identifies you as an individual and is not otherwise available to the public. It includes personal financial information and personal health information. We collect personal information to service your application, account and claims and to support our business functions.

We will continue to follow our Privacy Policy regarding personal information even when a business relationship no longer exists between us.

Collection of Information

We collect personal information so that we may offer quality products and services. We may obtain personal information from the following sources:

- Directly from you, such as your name, address and social security number.
- Directly from us, such as your premium payment history.
- From third parties, such as companies that have your driving record or claims history.
- From medical professionals or medical records.
- From inspections or photos taken of your property.
- From consumer report agencies. Upon request, we will tell you how to get a copy of this report. The agency that prepares the report for us may retain the report and disclose it to others as permitted by law.

We, and the third parties we partner with, may track some of the web pages you visit through cookies, pixel tagging or other technologies. We currently do not process or comply with any web browser's "do not track" signals or similar mechanisms that request us to take steps to disable online tracking. You may be able to set your browser to reject cookies. Please review your browser or device's "Help" file to learn the best way to modify your settings. Please note that rejecting cookies may disrupt certain functionality of the Website.

Disclosure of Information

We may disclose non-public, personal information you provide, as required to conduct our business and as permitted or required by law. We may share information with third parties such as:

- Third parties who perform professional, insurance or business functions for us.
- Insurance institutions, agents or consumer reporting agencies in connection with any application, policy or claim involving you or your policy.
- Claims adjusters, appraisers and others to defend or settle claims involving your policy.
- An insurance regulatory authority in connection with the regulation of our business, or to a law enforcement agency, governmental authority or other authorized person or institution to protect our legal interests, detect or prevent insurance fraud or criminal activity, or as otherwise permitted or required by law.
- Businesses that conduct scientific or actuarial research.
- Lienholders, mortgagees, lessors or other persons having a legal or beneficial interest in your property.

We will not sell or share your personal financial information with anyone for purposes unrelated to our business functions without offering you the opportunity to “opt-out” or “opt-in” as required by law.

We only disclose personal health information with your authorization or as otherwise allowed or required by law.

Safeguards to Protect your Personal Information

We recognize the need to prevent unauthorized access to the information we collect, including information held in an electronic format on our computer systems. We maintain physical, electronic and procedural safeguards intended to protect the confidentiality and integrity of all non-public, personal information.

Internal Access to Information

We restrict access to your non-public personal information to those employees who need to know it in order to provide products and services to you, and we train our employees on how to handle and protect that information. Our employees have access to personal information in the course of doing their jobs, such as:

- underwriting policies;
- paying claims;
- developing new products; or
- advising customers of our products and services.

Consumer Reports

In some cases, we may obtain a consumer report in connection with an application for insurance. Depending on the type of policy, a consumer report may include information about you or your business, such as:

- character, general reputation, personal characteristics, mode of living;
- audit history, driving record (including records of any operators who will be insured under the policy); and/or
- an appraisal of your dwelling or place of business that may include photos and comments on its general condition.

Upon written request, we will inform you if we have ordered an investigative consumer report. You have the right to make a written request within a reasonable period for information concerning the nature and scope of the report and to be interviewed as part of its preparation. You may obtain a copy of the report from the reporting agency and, under certain circumstances, you may be entitled to a copy at no cost.

Access to Information

You have the right to request access to the personal information that we record about you, to have reasonable access to it and to receive a copy. To do so, contact us at:

Palomar Holdings, Inc.
7979 Ivanhoe Avenue, Suite 500
La Jolla, CA 92037

Please include your complete name, address, and policy number(s), and indicate specifically what you would like to see. If you request actual copies of your file, there may be a nominal charge. We will tell you to whom we have disclosed the information within the two years prior to your request. If there is not a

record indicating that the information was provided to another party we will tell you to whom such information is normally disclosed.

There is information that that we cannot share with you. This may include information collected in order to evaluate a claim under an insurance policy or when the possibility of a lawsuit exists. It may also include medical information that we would have to forward to a licensed medical doctor of your choosing so that it may be properly explained.

Correction of Information

If after reviewing your file you believe information is incorrect, please write to the consumer reporting agency or to us, whichever is applicable, explaining your position. The information in question will be investigated. If appropriate, corrections will be made to your file and the parties to whom the incorrect information was disclosed, if any, will be notified. However, if the investigation substantiates the information in the file, you will be notified of the reasons why the file will not be changed. If you are not satisfied with the evaluation, you have the right to place a statement in the file explaining why you believe the information is incorrect. We also will send a copy of your statement to the parties, if any, to whom we previously disclosed the information and include it in any future disclosures.

Changes to this Policy

We will periodically review and revise our Privacy Policy and procedures to ensure that we remain compliant with all state and federal requirements. If any provision of our Privacy Policy is found to be noncompliant, then that provision will be modified to reflect the appropriate state or federal requirement. If any modifications are made, all remaining provisions of this Privacy Policy will remain in effect.

Contact

For more detailed information about our Privacy Policy, visit our website: <https://plmr.com>.

Producer Compensation Disclosure

Our products are sold through independent agents and brokers, often referred to as "Producers". We may pay Producers a fixed commission for placing and renewing business with our company. We may also pay an additional commission and other forms of compensation and incentives to Producers who place and maintain their business with us.

NEW YORK SURPLUS LINES NOTICE

PALMOAR EXCESS AND SURPLUS INSURANCE COMPANY IS NOT LICENSED BY THE STATE OF NEW YORK, NOT SUBJECT TO ITS SUPERVISION, AND IN THE EVENT OF THE INSOLVENCY OF PALOMAR EXCESS AND SURPLUS INSURANCE COMPANY, NOT PROTECTED BY THE NEW YORK STATE SECURITY FUNDS. THE POLICY MAY NOT BE SUBJECT TO ALL OF THE REGULATIONS OF THE DEPARTMENT OF FINANCIAL SERVICES PERTAINING TO POLICY FORMS.

DECLARATIONS

FOLLOW FORM EXCESS INSURANCE POLICY

NOTICE: THIS IS A CLAIMS-MADE POLICY. EXCEPT AS OTHERWISE PROVIDED HEREIN, THIS POLICY ONLY COVERS CLAIMS FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD OR, IF APPLICABLE, THE EXTENDED REPORTING PERIOD. THE LIMIT OF INSURANCE WILL BE REDUCED BY PAYMENT OF DEFENSE COSTS AND DAMAGES. PLEASE READ THIS POLICY CAREFULLY.

NOTICE: THIS INSURANCE CONTRACT IS WITH AN INSURER NOT LICENSED TO TRANSACT INSURANCE IN THE NAMED INSURED'S STATE OF DOMICILE AND IS ISSUED AND DELIVERED AS A SURPLUS LINE COVERAGE PURSUANT TO THE INSURANCE STATUTES.

POLICY NO: OII-459-DOX-1-2024-2-P

- ITEM 1. NAMED INSURED: Anavex Life Sciences Corp.
 ADDRESS: 51 W 52nd Street, 7th Floor, New York, NY 10019
 MAILING ADDRESS: 51 W 52nd Street, 7th Floor, New York, NY 10019
- ITEM 2. POLICY PERIOD: From: July 31, 2024 To: July 31, 2025
 (12:01 A.M. local time at the address stated in Item 1.a.)
- ITEM 3. LIMIT OF LIABILITY: a. \$5,000,000 each **Claim** (inclusive of defense costs)
 b. \$5,000,000 in the aggregate (inclusive of defense costs)
- ITEM 4. PENDING & PRIOR DATE: a. 07/05/2013
 RETROACTIVE DATE: b. N/A

This Policy follows any Pending & Prior Litigation Exclusion or similar exclusion in the **Followed Policy**, except that the applicable date in such Exclusion shall be the date indicated in this Item 4.a.

This Policy follows any Retroactive Date Exclusion or similar exclusion in the **Followed Policy**, except that the applicable date in such Exclusion shall be the date indicated in this Item 4.b.

ITEM 5. FOLLOWED POLICY:

Insurer	Policy No.	Policy Term	Limits of Liability	Attachment
Starstone Specialty Insurance Company	DNO00032642P-06	07/31/2024 – 07/31/2025	\$5,000,000 each Claim \$5,000,000 Aggregate	\$3,500,000 each Claim deductible

ITEM 6. UNDERLYING POLICY(IES):

Insurer	Policy No.	Policy Term	Limits of Liability	Attachment
Starstone Specialty Insurance Company	DNO00032642P-06	07/31/2024 – 07/31/2025	\$5,000,000 each Claim \$5,000,000 Aggregate	\$3,500,000 each Claim deductible

ITEM 7. POLICY PREMIUM: \$119,340

ITEM 8. EXTENDED REPORTING PERIOD PREMIUM: As per **Followed Policy**.

ITEM 9. FORMS & ENDORSEMENTS:

These Declarations, together with the attached Policy Form and Endorsements as stated in the ORION-XS-END-000 (05-2022) Policy Form Schedule and the **Application** (including all information furnished by the **Insured's** in the underwriting of this Policy), shall constitute the contract between the **Insureds** and the **Insurer** ("Policy").

ITEM 10. NOTICE TO THE INSURER:

A. Address for Notice of Claim or Potential Claim: Attn: Mendes & Mount, LLP 750 Seventh Ave New York, NY 10019 Attention: Kevin G. Flynn, Esq. Kevin.flynn@mendes.com	B. Address for all other Notices: Attn: Orion Insurance Intermediaries, LLC. 1298 Prospect Street, #1U La Jolla, CA 92037
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The **Insurer** hereby causes this Policy to be signed by a duly authorized representative of the **Insurer**.

09/09/2024
Date

List of Insurance Carriers:

This Policy is issued in accordance with the limited authorization granted to Orion Insurance Intermediaries, LLC by Palomar Excess & Surplus Insurance Company (the "Insurer") and the proportions underwritten are noted below. In consideration of the premium specified herein, the Insurers hereby bind themselves severally and not jointly, each for its own part and not one for another.

Name of Insurance Carrier	Percentage
Palomar Excess and Surplus Lines Insurance Company (A X)	100%

The registered address for Orion Insurance Intermediaries, LLC is 1298 Prospect Street, #1U
La Jolla, CA 92037



Named Insured: Anavex Life Sciences Corp.

Endorsement No: 1

Premium: Included

Policy No: OII-459-DOX-1-2024-2-P

Effective Date: July 31, 2024

Policy Form Schedule

It is agreed that:

1. Item 9. Forms and Endorsements of the Declarations of this Policy is amended by the addition of the following:

Item 9. Forms and Endorsements:

Form	Form Title
ORION-XS-GTC (05-2022)	Follow Form Excess Insurance Coverage Form
PESIC006 0222	Notice to Policyholders
PESIC007 0222	Customer Notice of Privacy Policy and Producer Compensation Practices Disclosure
PESIC040 0222	New York Surplus Lines Notice
ORION-XS-016 (05-2022)	Pending or Prior Date Exclusion – Split Limits
ORION-XS-030 (05-2022)	Follow Form Underlying Carrier's Sublimited Coverage
OS-SOS	Service of Suit Clause Endorsement
OS-TRIA	Notice of Terrorism Insurance Coverage Disclosure

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



FOLLOW FORM EXCESS INSURANCE COVERAGE FORM

In consideration of the premium paid and in reliance on all statements made and information furnished by the **Insureds** in the **Application** and the underwriting of this Policy, and subject to the terms, conditions and limitations of this Policy, the **Insureds** agree with the **Insurer** as follows:

I. INSURING AGREEMENT

The **Insurer** shall provide excess coverage for **Claims** first made during the **Policy Period** or, if applicable, the extended reporting period. This Policy, except as stated herein, is subject to all of the terms, conditions, representations, limitations and restrictions contained in the **Followed Policy** as of the inception date of this Policy. In no event shall this Policy grant broader coverage than would be provided by the most restrictive **Followed Policy**.

II. CONDITIONS

A. Underlying Insurance

1. Liability for any covered **Loss** resulting from covered **Claims** shall attach to the **Insurer** only after the insurers of the **Underlying Policy(ies)**, the **Insureds** or any **DIC Insurer** or other party have paid in legal currency Loss covered under the respective **Underlying Policy(ies)** equal to the full amount of the **Underlying Limit**. The **Insurer** shall then be liable to pay only covered **Loss** in excess of such **Underlying Limit** up to the Limit(s) of Liability specified in Item 3 of the Declarations.
2. This Policy shall drop down to the extent the **Underlying Limit** is paid as described in paragraph A.1. above and shall not drop down for any other reason including but not limited to uncollectability, in whole or in part, of any **Underlying Policy** or any insurance provided by a **DIC Insurer** until such **Underlying Limit** is paid as described in Paragraph A1.

Provided however, and notwithstanding the foregoing, if an insurer of an **Underlying Policy** does not pay covered **Loss**, this Policy shall drop down as if such **Underlying Policy** was not a policy listed in Item 6 of the Declarations, but only with respect to **Non-Indemnified Loss** otherwise covered under this Policy.

3. If any **Underlying Policy** contains a specific grant of coverage that is subject to a sublimit of liability or a supplementary payment, then this Policy shall not provide such coverage. However, this Policy shall recognize any reduction and, if applicable, exhaustion of the **Underlying Limit** by payment under such coverage.
4. Any and all **Underlying Policy(ies)** shall be maintained in full force and effect. In the event of failure to maintain any **Underlying Policy(ies)**, the **Insurer** shall not be liable under this Policy to a greater extent than it would have been had such **Underlying Policy(ies)** been maintained.

B. LIMITS OF LIABILITY AND RETENTION

1. If an each **Claim** Limit of Liability is specified in Item 3.a. of the Declarations, the maximum liability of the **Insurer** for all **Loss** and defense costs arising from each **Claim** covered under this Policy shall not exceed the each **Claim** Limit of Liability specified in Item 3.a. of the Declarations.
2. The maximum liability of the **Insurer** for the combined total of all **Loss** and defense costs arising from any and all **Claims** covered under this Policy shall not exceed the aggregate Limit of Liability specified in Item 3.b. of the Declarations.
3. If this Policy drops down because of the exhaustion of the **Underlying Limit**, the applicable deductible, retention and/or coinsurance of the **Followed Policy** shall apply to each **Claim** handled by the **Insurer** on a primary basis.

C. REPORTING AND NOTICE REQUIREMENTS

1. All notices under this Policy shall be in writing and properly addressed to the appropriate party. Notice to the **Insureds** shall be given to the **Named Insured** at the address as shown in Item 1 of the Declarations. Electronic mail notice shall be deemed sufficient.
2. Where the **Followed Policy** permits or requires notice to its insurer, including notice of a **Claim** or potential **Claim**, then as a condition precedent to the obligations of the **Insurer** under this Policy, the **Insureds** shall, contemporaneously with and according to the terms of the **Followed Policy**, give the same written notice to the **Insurer** at the applicable street address or email address shown in Item 10 of the Declarations.
3. The **Insurer** may, at its sole discretion, associate with the **Insureds** in the investigation, defense and/or settlement of any **Claim** or potential **Claim** reported to the **Insurer** and reasonably expected to involve this Policy even if the **Underlying Limit** has not been exhausted.

D. EXTENDED REPORTING PERIOD COVERAGE

If the Insureds elect and secure extended reporting period coverage in all unexhausted **Underlying Policies**, the Insureds shall also be entitled to elect an extended reporting period under this Policy; provided however, in no event shall the duration of the extended reporting period under this Policy be greater than the duration of the extended reporting period under the **Followed Policy**. The right to purchase the extended reporting period under this Policy is conditioned upon satisfaction of the same conditions as specified in the **Followed Policy** and such extended reporting period shall follow form to, and apply in conformance with, the provisions of the **Followed Policy**.

The Limit(s) of Liability for the extended reporting period, if exercised, shall be part of and not in addition to the Limit(s) of Liability specified in Item 3 of the Declarations. The purchase of the extended reporting period shall not increase or reinstate the Limit(s) of Liability of this Policy

E. CHANGES

To the extent any term, condition, representation, limitation or restriction of the **Followed Policy** is changed during the **Policy Period** and/or, if applicable, the extended reporting period, this Policy shall automatically become subject to any such change that limits or restricts coverage. This Policy shall become subject to any such change that expands or broadens coverage only if and to the extent the **Insurer** agrees to such change in writing. Assignment of interest under this Policy shall not bind the **Insurer** unless its consent is endorsed hereon.

F. CONTRADISTINCTION FROM UNDERLYING INSURANCE

Notwithstanding any other provision of this policy, to the contrary, this policy follows the insuring clauses, warranties, and definitions of the **Followed Policy** except as regards the premium and limit of liability. It is further agreed that if this excess policy contains an effective date for a Prior and Pending Litigation Exclusion that is different than the date in the **Followed Policy**, then the date in this excess policy shall prevail. All other terms and conditions of this policy remain unchanged

III. DEFINITIONS

Whenever printed in boldface type, and whether in singular or plural form in this Policy, the following terms shall have the meanings indicated below. Any term used in this Policy that is defined in the **Followed Policy**, including but not limited to **Application**, **Claim** and **Loss**, shall have the same meaning as assigned to that term or the equivalent term in the **Followed Policy** unless otherwise stated herein.

- A. **DIC Insurer** means any insurer of an insurance policy written specifically excess of this Policy that is contractually obligated to drop down and pay covered **Loss** that is not paid by any **Underlying Policy**. This Policy does not follow form to the provisions of the policy of such **DIC Insurer**.
- B. **Financial Impairment** means the status of an entity resulting from the appointment of any state or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate such entity.
- C. **Followed Policy** means the policy specified in Item 5 of the Declarations.
- D. **Insurer** means the insurance company shown at the top of the Declarations.
- E. **Insureds** shall have the same meaning as assigned to that term or the equivalent term in the **Followed Policy**.

- F. **Named Insured** shall have the same meaning as assigned to that term or the equivalent term in the **Followed Policy**.
- G. **Non-Indemnified Loss** means **Loss** for which neither the **Named Insured** nor any other entity or person indemnifies a natural person **Insured**.
- H. **Policy Period** means the period of time specified in Item 2 of the Declarations, subject to prior termination in accordance with the **Followed Policy**.
- I. **Underlying Limit** means an amount equal to the total limits of liability of all **Underlying Policies**, plus the retention, deductible, and/or coinsurance, if any, applicable under the **Underlying Policy(ies)**.
- J. **Underlying Policy(ies)** means the **Followed Policy** and any other policies listed in Item 6 of the Declarations.



Named Insured: Anavex Life Sciences Corp.

Policy No: OII-459-DOX-1-2024-2-P

Endorsement No: 2

Effective Date: July 31, 2024

Premium: Included

**FOLLOW FORM EXCESS LIABILITY INSURANCE POLICY
PENDING AND PRIOR LITIGATION EXCLUSION-SPLIT LIMITS**

It is agreed that:

Original Limit of Liability	Pending or Prior Date: Original Limit of Liability	Increased Limit of Liability	Pending or Prior Date: Increased Limit of Liability
\$2,500,000	07/05/2013	\$2,500,000 excess of \$7,500,000	07/05/2016

1. The following exclusion is added to this Policy:

Notwithstanding any terms or conditions of this Policy to the contrary, this Policy shall not apply to any **Claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any prior or pending written demand, suit, complaint, proceeding, investigation, order, judgment, or notice of violation first made against any **Insured** prior to the **Pending or Prior Date**.

2. Section III. Definitions of this Policy is amended by the addition of the following:

III. **Pending or Prior Date** means:

1. with respect to the Original Limit of Liability specified in the Schedule above, the applicable date, if any, under the heading "Pending or Prior Date: Original Limit of Liability";
2. with respect to the Increased Limit of Liability specified in the Schedule above, the applicable date, if any, under the heading "Pending or Prior Date: Increased Limit of Liability".

3. Nothing in this endorsement is intended nor will be construed to increase or amend the Limits of Liability set forth in Item 3 of the Declarations.

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



Named Insured: Anavex Life Sciences Corp.

Policy No: OII-459-DOX-1-2024-2-P

Endorsement No: 3

Effective Date: July 31, 2024

Premium: Included

**FOLLOW FORM EXCESS LIABILITY INSURANCE POLICY
FOLLOW FORM UNDERLYING CARRIER'S SUBLIMITED COVERAGE**

It is agreed that:

1. Section II. Conditions A. Underlying Insurance, subsection 3 of this Policy is amended by the addition of the following:
 3. However, and notwithstanding the foregoing, if every **Underlying Policy** contains a sublimit of liability for the **Specific Coverage Grant**, then this Policy shall provide coverage for such **Specific Coverage Grant** only after the insurers of the **Underlying Policy(ies)**, the **Insureds** or any **DIC Insurer** have paid in legal currency **Loss** covered under such **Specific Coverage Grant** equal to the combined total of all aggregate sublimits of liability plus the retention, deductible and/or coinsurance, if any, applicable to such **Specific Coverage Grant** under the **Underlying Policy(ies)**.
The **Insurer's** maximum aggregate liability for the combined total of all **Loss** covered under such **Specific Coverage Grant** shall not exceed \$200,000 excess of \$200,000, which amount shall be part of and not in addition to the Limits of Liability stated in Item 3 of the Declarations.
2. Section III. Definitions of this Policy is amended by the addition of the following:
Specific Coverage Grant means: Derivative Demand Investigation Costs.

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.

SERVICE OF SUIT CLAUSE ENDORSEMENT

NOTWITHSTANDING ANYTHING CONTAINED HEREIN TO THE CONTRARY, IT IS HEREBY UNDERSTOOD AND AGREED THAT:

In the event of the failure of **Insurer** to pay any amount claimed to be due hereunder, **Insurer** at the request of any person or entity insured hereunder will submit to the jurisdiction of any court of competent jurisdiction within the United States and will comply with all requirements necessary to give such court jurisdiction. Nothing in this Endorsement constitutes or should be understood to constitute a waiver of **Insurer's** rights to commence an action in any court of competent jurisdiction in the United States, to remove an action to United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States. It is further agreed that service of process in such suit may be made upon the **Insured** shown under Item 10. of the Declarations, and that in such suit instituted against **Insurer** upon this Policy, **Insurer** will abide by the final decision of such court or of any appellate court in the event of an appeal.

The firm identified below is authorized and directed to accept service of process on behalf of **Insurer** in any such suit:

Mendes & Mount, LLP
750 Seventh Ave
New York, NY, 10019

Attention: Kevin G. Flynn, Esq.
Email: kevin.flynn@mendes.com

Further, pursuant to the statute of any state, territory or district of the United States which makes provision therefor, **Insurer** hereon hereby designates the Superintendent, Commissioner or Director of Insurance or other officers specified for that purpose in the statute, or any of their successors in office, as their true and lawful attorney, upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of any person or entity insured hereunder or any beneficiary hereunder arising out of this Policy, and hereby designate the firm identified above as the firm to whom the said officer is authorized to mail such process or a true copy thereof.

ALL OTHER POLICY TERMS AND CONDITIONS SHALL REMAIN UNCHANGED.

**POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM INSURANCE COVERAGE**

You are hereby notified that under the Terrorism Risk Insurance Act, as amended, that you have a right to purchase insurance coverage for losses resulting from acts of terrorism, as defined in Section 102(1) of the Act: The term “act of terrorism” means any act that is certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

YOU SHOULD KNOW THAT WHERE COVERAGE IS PROVIDED BY THIS POLICY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM, SUCH LOSSES MAY BE PARTIALLY REIMBURSED BY THE UNITED STATES GOVERNMENT UNDER A FORMULA ESTABLISHED BY FEDERAL LAW. HOWEVER, YOUR POLICY MAY CONTAIN OTHER EXCLUSIONS WHICH MIGHT AFFECT YOUR COVERAGE, SUCH AS AN EXCLUSION FOR NUCLEAR EVENTS. UNDER THE FORMULA, THE UNITED STATES GOVERNMENT GENERALLY REIMBURSES 80% BEGINNING ON JANUARY 1, 2020 OF COVERED TERRORISM LOSSES EXCEEDING THE STATUTORILY ESTABLISHED DEDUCTIBLE PAID BY THE INSURANCE COMPANY PROVIDING THE COVERAGE. THE PREMIUM CHARGED FOR THIS COVERAGE IS PROVIDED BELOW AND DOES NOT INCLUDE ANY CHARGES FOR THE PORTION OF LOSS THAT MAY BE COVERED BY THE FEDERAL GOVERNMENT UNDER THE ACT.

YOU SHOULD ALSO KNOW THAT THE TERRORISM RISK INSURANCE ACT, AS AMENDED, CONTAINS A \$100 BILLION CAP THAT LIMITS U.S. GOVERNMENT REIMBURSEMENT AS WELL AS INSURERS’ LIABILITY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM WHEN THE AMOUNT OF SUCH LOSSES IN ANY ONE CALENDAR YEAR EXCEEDS \$100 BILLION. IF THE AGGREGATE INSURED LOSSES FOR ALL INSURERS EXCEED \$100 BILLION, YOUR COVERAGE MAY BE REDUCED.

Acceptance or Rejection of Terrorism Insurance Coverage

☐	I hereby elect to purchase terrorism coverage for a prospective premium of \$
☐	I hereby decline to purchase terrorism coverage for certified acts of terrorism. I understand that I will have no coverage for losses resulting from certified acts of terrorism.

Policyholder/Applicant’s Signature

Print Name

Date

Insurance Company

Policy Number